
Everyone's Missing the Biggest New Offense From the Epstein Emails

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Earlier this month, emails released from a tranche of files about the convicted sex offender Jeffrey Epstein revealed a chummy relationship between Epstein and former treasury secretary and president of Harvard Larry Summers. These messages are deeply troubling, and there is plenty of criticism to heap on Summers, who now holds Harvard's highest faculty honor as a university professor. He has been pilloried for [continuing to associate with and rely on personal advice](#) from Epstein for years after charges were brought against him; for once [again denigrating women's intelligence](#), even after doing so cost him the top job at Harvard; and for using an [ugly racial slur](#) to refer to a target of his apparently unwanted sexual advances.

But that's not all we should blame Summers for. We still lack a full accounting of the exchanges between Summers and Epstein. Yet what the messages between the two unmistakably reveal is Summers relying on Epstein as his "[wing man](#)" for guidance on how to leverage his professional status to "[get horizontal](#)" with a rising economics professor he describes as his mentee. In a rare window into the mechanics of this form of sexual exploitation, we see Summers strategizing about how to get the woman "[in bed](#)" as the mentee appears to try to retain an important professional relationship without more.

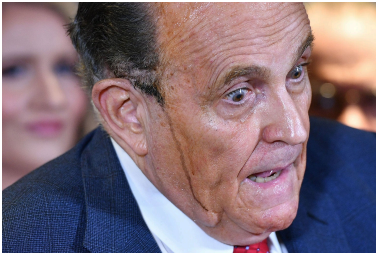
There is undoubtedly something wrong with a powerful man attempting to exchange professional access for sex. At time when our commander in chief has bragged about "[grabbing 'em by the pussy](#)" and been found [liable for sexual abuse](#), Summers' indiscretions might seem mild in comparison. But dismissing them would be a mistake.

In one message in November 2018, Summers wrote to Epstein, "Think for now I'm going nowhere with her except economics mentor." Later, Summers provided Epstein an explanation for why the woman, who had not succumbed to his advances, remained in touch with him: "She must be very confused or maybe wants to cut me off but wants professional connection a lot and so holds to it." When Summers forwarded Epstein an email from his mentee seeking comments on her paper, Epstein responded: "She's already begining to sound needy :) nice."

In a later set of messages, Epstein initially expressed doubt about the woman's interest in Summers before changing his tune, writing that "she is never ever going to find another Larry summers. Probability ZERO." Here Summers is at his most explicit about the exchange of sex for power: that his "best shot" with the woman is that she determines that his role in her career is "invaluable" and concludes "she can't have it without romance / sex."

In 1979, Catharine MacKinnon published her breakthrough book [The Sexual Harassment of Working Women](#), which theorized how sexual harassment violated the law. MacKinnon and [others who developed](#) the notion of the [wrong of sexual harassment](#) sought to show how sexual exploitation by those in a position of professional authority was a critical barrier to women's equality. As MacKinnon put it, sexual harassment is "the unwanted imposition of sexual requirements in the context of a relationship of unequal power." Sexual harassment at work is wrong because it conditions women's workplace standing and their material subsistence on sex.

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Crucially, relationships of unequal professional power that allow for sexual exploitation are not limited to the workplace itself. Employers can condition professional benefits on sexual attention, but so can a range of other gatekeepers in a field, such as senior scholars, funders, and other institutional power brokers. Regardless of whether this type of exploitation is within or outside the confines of employment, it amounts to, as MacKinnon described it, “[the sexual expression of the economic dominance men have over women](#).”

With the idea of sexual harassment developed by MacKinnon, both law and norms around the wrong of sexual exploitation at work took hold. While this area of law is inconsistently enforced and its precise contours are subject to debate, it is no longer acceptable for a boss to use his authority to secure sex from a subordinate. Yet as sexual harassment law developed, it did so as a species of employment discrimination, an area of law that typically only regulates the conduct of employers and employees. No law prohibits this type of professional sexual misconduct outside of the employment context unless it rises to the level of a criminal or civil sexual assault. A woman who resists such attempts at sexual exploitation, as Summers' mentee seems to have done, has no remedy for its professional or psychological toll.

The #MeToo movement, [for all its unevenness](#), urged us to broaden our understanding of how professional power can be used for sexual exploitation outside the bounds of a traditional employment relationship. Harvey Weinstein's [horrific wrongdoing](#) provides an extreme example. Weinstein used his position as a powerful movie producer to rape multiple actresses who were not in his employ. But it is wrong to condition professional benefits on sex, regardless of whether the abuser ultimately procured it. It would be a shame if this hard-won lesson were forgotten.

And while #MeToo has faced considerable [backlash](#), the movement's lasting legacy includes [two federal laws](#) that removed barriers to enforcing sexual harassment law. These laws were passed with broad bipartisan support, at a time when reaching across the aisle is nearly unheard of.

With congressional Democrats and Republicans [agreeing](#) on the release of the Epstein files, the Epstein scandal provides another rare opportunity for bipartisan focus on sexual misconduct. Sen.

Elizabeth Warren has rightly [called on](#) Harvard to cut ties with Summers. This is not only because, as Warren [argued](#), he “cannot be trusted to advise our nation’s politicians, policymakers and institutions—or teach a generation of students at Harvard or anywhere else.” Just as important, Summers traded on the status that Harvard conferred on him to try to secure sexual favors. Harvard—and any other institutions from which Summers garners clout—should sever their connection with him. And we should all seek to renew Me Too’s press to recognize the wrong of exchanging professional power for sex.

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